

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X Index No.:
BRANDON GRANT,

Plaintiff(s),

SUMMONS 1160526/14

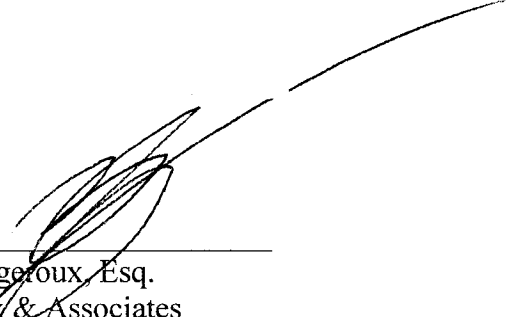
Plaintiff designates Kings County as
place of trial.

-Against-

The basis of venue is Plaintiff resides
in Kings County.THE CITY OF NEW YORK, THE
NEW YORK CITY POLICE
DEPARTMENT and POLICE
OFFICER JOE GREEN, an
employee of THE NEW YORK
CITY POLICE DEPARTMENTDefendants(s).
-----XPlaintiff resides at 159 Halsey Street,
Brooklyn, NY 11216

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: November 11, 2014
Brooklyn, NY

Brian Figeroux, Esq.
Figeroux & Associates
26 Court Street, Suite 701
Brooklyn, NY 11242
(718) 834-0910

TO:

The City of New York
Law Department
100 Church Street
New York, NY 100072014 NOV 13 AM 10:41
KINGS COUNTY CLERK
FILED

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.:

BRANDON GRANT,

Plaintiff(s),

-Against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and POLICE OFFICER
GREEN an employee of THE NEW YORK CITY
POLICE DEPARTMENT.

Defendant(s).

-----X
NOW COMES Plaintiff, BRANDON GRANT, by their attorney, The Law Offices of Figeroux
and Associates, as and for a Verified Complaint, respectfully allege upon information and belief
as follows:

PARTIES

1. At all times hereinafter mentioned, Plaintiff BRANDON GRANT, was and still is a resident of the County of Kings, City and State of New York.
2. Upon information and belief, at all times hereinafter mentioned, Plaintiff, BRANDON GRANT was and still is a resident of the County of Kings, City and State of New York.
3. Plaintiff, BRANDON GRANT, born in 1958, is a black male, a citizen of the United States, and at all relevant times a resident of the State of New York.
4. At all times hereinafter mentioned, upon information and belief, the Defendant, THE CITY OF NEW YORK, was and still is a domestic municipal corporation, duly organized and existing under the laws of the State of New York. THE CITY OF NEW YORK has established and maintains THE NEW YORK CITY POLICE DEPARTMENT as an agency of THE CITY OF NEW YORK and is a named Defendant herein.
5. On or about October 24, 2013, and within 90 days after the claim sued upon arose, Plaintiff caused a notice of claim to be served upon THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT by delivering personally a copy of thereof in duplicate to the Comptroller's office, City of New York. The Notice of Claim set forth in duplicate to the Comptroller's Office, City of New York. The notice of claim, the time when, the place where, and the manner in which claim arose and the items of damage or injuries claimed to have been sustained insofar as was then practicable. (A copy of the notice of claim is attached as exhibit A).

6. On September 16, 2014, a 50H Municipal Hearing was held in this matter.
7. At least 30 days have elapsed prior to the commencement of this action and since the service of the notice of claim, the 50H Municipal Hearing and no adjustment or payment thereof has been neglected or refused by The City Of New York, and this action was commenced on the claim within one year and 90 days after the happening of the event upon which the claim is based.
8. Upon information and belief on or about the 28th, day of August, 2013 at approximately 1:00 p.m. Plaintiff, BRANDON GRANT, was a lawful pedestrian standing in front of 65 West 130th Street, when an illegal "Stop and Frisk" was performed by POLICE OFFICER JOE GREEN of the 32ND Precinct outside of 65 West 130th Street in the Borough of Manhattan, County of New York in the State of New York.

FACTUAL BACKGROUND

9. This is an action for false arrest, false imprisonment, illegal and conversion of property by THE CITY OF NEW YORK and its agents at THE NEW YORK CITY POLICE DEPARTMENT and more in particular POLICE OFFICER JOE GREEN of the 32ND Precinct that caused Plaintiff loss of freedom, significant financial loss, medical liens as well as emotional distress, mental distress and serious personal injury.
10. This is also an action to redress the pain and suffering and psychological and serious physical injuries sustained by the Plaintiff as a result of the intentional, malicious, careless and negligent acts of the CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and POLICE OFFICER JOE GREEN an employee of The NEW YORK CITY POLICE DEPARTMENT and assigned to the 032 Precinct located at 250 West 135th Street, New York, NY 10030.
11. Upon information and belief on or about the 28th day of August, 2013, and at all times hereinafter mentioned, Plaintiff, BRANDON GRANT, was lawfully standing in front of 65 West 130th Street, in the Borough of Manhattan and County New York in the State of New York.
12. Upon information and belief on or about the 28th day of August, 2013, and at all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICER JOE GREEN an employee of The NEW YORK CITY POLICE DEPARTMENT, and the 032 Precinct falls under the umbrella of the Defendant, THE CITY OF NEW YORK.

13. Upon information and belief on or about the 28th day of August, 2013, and at all times hereinafter mentioned, Defendant(s), The CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, were negligent in hiring of staff.
14. Upon information and belief on or about the 28th day of August, 2013, and at all times hereinafter mentioned, Defendant(s), The CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, were negligent in supervision of staff.
15. Upon information and belief on or about the 28th day of August, 2013, and at all times hereinafter mentioned, Defendant(s), The CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, owned, operated, maintained and controlled, 032 Precincts which falls under the umbrella of the Defendant(s), and is located at located at 250 West 135th Street, New York, NY10030.
16. That all times hereinafter mentioned, the individually named Defendant POLICE OFFICER JOE GREEN, was a duly sworn police officer of said department and was acting under the supervision of said department and according to their official duties.
17. That all times hereinafter mentioned the Defendants, either personally or through their employees, were acting under the color of State law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.
18. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by Defendant, The CITY OF NEW YORK.
19. On or about the 28th day of August, 2013, the Defendant, POLICE OFFICER JOE GREEN, was employed with THE NEW YORK CITY POLICE DEPARTMENT.
20. Upon information and belief on or about the 28th day of August, 2013, and at all times hereinafter mentioned, Defendant, POLICE OFFICER JOE GREEN an employee of The NEW YORK CITY POLICE DEPARTMENT, illegally stopped and frisked, assaulted, falsely arrested, imprisoned and humiliated Plaintiff in public on the day of occurrence.
21. On or about the 28th day of August, 2013, the Plaintiff, BRANDON GRANT, was a lawful pedestrian at the time of occurrence.
22. On or about the 28th day of August, 2013, the Plaintiff, arrest was without probable cause, a warrant or consent.

23. Plaintiff was taken to the 032 Precinct and detained for several hours before being issued a desk appearance ticket.
24. Plaintiff has appeared to several court appearances.
25. At all times during the events described above, the defendant police officers were engaged in a joint venture and formed an agreement to violate plaintiff's rights.
26. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events.
27. They failed to intervene in the obviously illegal actions of their fellow officers against the plaintiff.
28. During the events described above, defendants acted maliciously and with the intent to injure plaintiff.
29. The Defendant(s), so negligently, hired and retention and negligent supervision, intentional infliction of emotional distress, negligent infliction of emotional distress, negligence, negligent supervision, resulting in permanent psychological and physical residuals, psychological manifestation and overlay, lessening of self-esteem, betrayal of trust, which will have lifelong effects upon Plaintiff including but not limited to his ability to relate to others and inability to resume a normal and productive life, special damages and enjoyment of life.

**FIRST CAUSE OF ACTION
OF PLAINTIFF, NEGLIGENCE**

30. The accident and the resulting injuries to Plaintiff, BRANDON GRANT, was caused by reason of the negligence of the Defendant(s).
31. As a result of the negligence of the Defendant(s) in causing the incident, Plaintiff, BRANDON GRANT, sustained serious and severe injuries, some or all of which are permanent in nature; he was rendered sick, lame, sore and disabled; he has suffered severe distress of body and mind, shock and anguish, great physical pain and emotional upset; this caused him to be hospitalized and received medical care and treatment; he was prevented from attending to his usual way of life; he was caused to suffer great pain and discomfort; he has incurred and will continue to incur costs and expenses for medical and hospital care and treatment, therapy and rehabilitation, all in an effort to be cured of said injuries and the resulting disability; he was required to undergo surgery; all to his great detriment and damage.

32. The action falls within one or more of the exceptions as set forth in CPLR Section 1602.
33. By reason of the foregoing, Plaintiff, BRANDON GRANT, has been damaged in the sum which after the adjustments and calculations expected to be required by the application of Article 50-B of the Civil Practice Law and Rules exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction.
34. As a direct and proximate result of the negligence of the defendant, the Plaintiff, BRANDON GRANT, suffered and continues to suffer serious physical and mental injury, great pain and suffering, loss of enjoyable way of life, has incurred hospital and medical expenses, and has been otherwise damaged in an amount the sum which after the adjustments and calculations expected to be required by the application of Article 50-B of the Civil Practice Law and Rules exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction.

**SECOND CAUSE OF ACTION OF PLAINTIFF
NEGLIGENT ENTRUSTMENT**

35. Plaintiff repeats and re-alleges the allegations of Paragraphs "1" through "34" of the Complaint as if fully set forth herein.
36. The failure of the Defendant(s), to exercise reasonable care was a direct and proximate cause of the injuries and loss suffered by the Plaintiff, BRANDON GRANT, in an amount the sum which after the adjustments and calculations expected to be required by the application of Article 50-B of the Civil Practice Law and Rules exceeds the jurisdictional limit of all lower courts which would otherwise have jurisdiction.
37. The above mentioned occurrence and the result thereof were caused by the joint, several and concurrent negligence of the Defendant(s) so negligently, hired and retention and negligent supervision, intentional infliction of emotional distress, negligent infliction of emotional distress, negligence, negligent supervision, resulting in permanent psychological residuals, psychological residuals, psychological manifestation and overlay, lessening of self-esteem, betrayal of trust, which will have lifelong effects upon Plaintiff including but not limited to his ability to relate to others and inability to resume a normal and productive life, special damages and enjoyment of life.
38. That no negligence on the part of the Plaintiff, BRANDON GRANT,, contributed to the occurrence alleged herein in any manner whatsoever.

39. That because of the above stated premises, the Plaintiff, BRANDON GRANT, was caused to have suffered pain, shock and mental disabilities and anguish.
40. That because of the above stated premises these injuries and their effects will be permanent and the Plaintiff, BRANDON GRANT, was caused to incur expenses for medical care and attention.
41. That as a result of the foregoing, the Plaintiff, BRANDON GRANT, was damaged in an amount, which after the adjustments and calculations expected to be required by the application of Article 50-B of the Civil Practice Law and Rules exceeds the jurisdictional limit of all lower court's which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendant, jointly and severally, as follows:

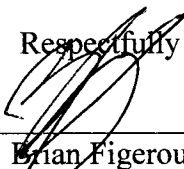
- a. On the First Cause of Action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- b. Awarding the Plaintiff interests, costs and disbursements in this action; and
- c. Granting such other and further relief as this Court may deem just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: November 11, 2014
Brooklyn, NY

Respectfully yours,



Brian Figeroux, Esq.
The Law Offices of Figeroux & Associates
Attorney for Plaintiff – BRANDON GRANT
26 Court Street, Suite 701
Brooklyn, New York 11242
Tel.: 718-843-0190;
Fax: 718-222-2135

OFFICE OF THE COMPTROLLER CITY OF NEW YORK

NOTICE OF CLAIM

CLAIMANT INFORMATION

CLAIMANT'S NAME: **BRANDON GRANT**
TEL. NO.: **(631) 356-7767**
STREET ADDRESS: **159 HALSEY STREET, APT. 3C**
CITY: **BROOKLYN** STATE: **NEW YORK** ZIP: **11216**
SOC. SEC NO.: 121-48-6425

CLAIM INFORMATION

CITY AGENCY INVOLVED:
COMPTROLLER OF THE CITY OF NEW YORK
Municipal Building
One Centre Street
12th Floor
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

NATURE OF CLAIM: (ATTACH ADDITIONAL SHEET(S) OF PAPER, IF NECESSARY)

Nature of claim: The nature of the claim is for severe and permanent personal injuries, sustained by **BRANDON GRANT** and all other damages allowed under statute and case law as a result of the negligence, carelessness and recklessness of THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT, and their agents, servants, employees and those acting under their direction, behest, permission and control in the ownership, operation, management, supervision and control of THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT.

The time when, the place where and the manner in which the claim arose: The incident arose on or about August 28, 2013 at approximately 1:00 p.m., while claimant was an lawful pedestrian walking on West 130th Street, when claimant was illegally "Stopped and Frisked" by two police officers of the New York City Police Department assigned to the 032 Precinct, in the borough of Manhattan, County of New York, when the claimant **BRANDON GRANT**, was subjected to an illegal "Stop and Frisk" by Police Officer Joe Green and was assaulted, harassed and humiliated in public by the Police Officers of the NEW YORK CITY POLICE DEPARTMENT assigned to the 032 precinct. Police stated claimant was in possession of a pocket knife with a 2" inch blade and charged under Criminal

Penal Law section 265.01 01. Claimant was then issued a DAT assigned Serial No.: 032-00694 and OLBS Arrest ID, M136765989.

On the aforementioned date and time, claimant BRANDON GRANT, was lawfully pedestrian when he was harassed, assaulted humiliated in public by the NYPD Police Officers.

That Claimant **BRANDON GRANT**, was caused to be injured by reason of THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENTS negligent and grossly inadequate supervision of their agents, servants, employees and those acting under their direction, behest, permission and control were negligent in the ownership, operation, inspection, management and control of employees, in particular THE NEW YORK CITY POLICE DEPARTMENT in failing to supervise the Police Officers; or failed to appropriately control its police officers,; or failed to try all reasonable interventions in these type of public incidents to prevent such events that arouse on the this date; or failed to carry out or implement an appropriately designed protocol ; or negligently or falsely arresting law abiding citizens without cause. That in addition to the negligent and inadequate supervision of their agents, servants, employees and those acting under their direction, behest, permission and control were negligent in the ownership, operation, inspection, management and control of employees, in particular THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent in their hiring, training and supervision of the staff with the Police Department.

THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent in their entrustment of the responsibility of operation of said facility. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT have a duty to provide trained staff and supervisors to oversee the precinct and its officers. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT have a duty to supervise the staff in said precinct.

That on August 28, 2013, in particular THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT breached their duties to the Claimant and as a result the Claimant sustained serious personal injuries, in particular THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants, employees and those acting under their direction, behest, permission and control were negligent in the ownership, operation, inspection, management and control of employees, in particular THE NEW YORK CITY POLICE DEPARTMENT command, located in the borough of Brooklyn and the county of KINGS.

Upon information and belief, the poor supervision of THE NEW YORK CITY POLICE DEPARTMENT, contributed to the physical injuries that Claimant, **BRANDON GRANT** incurred. The aforesaid accident and the injuries sustained by Claimant were due to the negligence, carelessness and recklessness of the CITY OF NEW

YORK and THE NEW YORK CITY POLICE DEPARTMENT, and their agents, servants and/or employees in the ownership, operation, management, maintenance, inspection and control of the aforesaid precincts that patrol Kings County and in breaching their duty to properly training, so as not to needlessly endanger and harm the patient's under their care, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT knew or should have known that an incident such as the instant one would or could occur; and in their lack of adequate supervision and failure to provide a safe environment; and the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT was otherwise careless and negligent in causing the serious injuries of Claimant **BRANDON GRANT**.

Claimant, BRANDON GRANT is and was an independent person. However, due to the injuries caused by this accident, he has being unable to perform his normal daily activities he normally would be able to.

VIOLATION OF CIVIL RIGHTS pursuant to 42 U.S.C. §1983, in that claimant BRANDON GRANT was deprived of his rights, privileges and immunities secured by the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a state, caused claimant to be so deprived and other and further violations of claimant's rights and privileges secured to him under the Constitutions of the United States of America and the State of NEW YORK.

NEGLIGENCE of the City of The CITY of NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employee in training and instruction of its police officers by not exercising care in instructing them as to their deportment, behavior and conduct as policemen and representatives of the CITY of NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT and in the training and instruction, among other things, on the proper use of weapons all without any negligence on the part of the Claimant BRANDON GRANT contributing thereto.

THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were negligent in their entrustment of the responsibility of operation of said facility. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT have a duty to provide trained staff and supervisors to oversee the police officers within its borough precincts. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT have a duty to supervise the staff in said precinct.

And now, Claimant, BRANDON GRANT, has sustained severe permanent personal injuries, the full extent of which is not presently known, including but not limited to pain and suffering, emotional distress, and future economic losses. Claim is for personal injuries, hospital, physician and other medical expenses, pain and suffering, loss of

quality and/or enjoyment of life, loss of present and future performance opportunities, and all other damages to which claimant is entitled to by case law and statute, all to her damage in the sum of FIVE MILLION DOLLARS (\$5,000,000.00).

The undersigned Claimant therefore presents this claim for adjustment and payment. You are hereby notified that unless this matter is adjusted and paid within the time provided by law from the date of presentation to you, the claimant intends to commence an action of claim.

TOTAL AMOUNT CLAIMED: **\$5,000,000.00**

IF MORE THAN ONE ITEM IS INCLUDED IN THE TOTAL AMOUNT CLAIMED, SUPPLY BREAKDOWN OF AMOUNT AND SPECIFY ITEMS: (ATTACH ADDITIONAL SHEET(S) OF PAPER, IF NECESSARY)

ITEM

Assault and Battery.....	\$1,000,000.00
Violation of Civil Rights.....	\$1,000,000.00
Negligence.....	\$3,000,000.00

PLEASE ATTACH COPIES OF SUPPORTING DOCUMENTATION, PREVIOUS CORRESPONDENCE, INVOICES, ETC.



MICHAEL R. BLOOMBERG
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
40 RECTOR STREET, 2ND FLOOR
NEW YORK, NEW YORK 10006 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb

DANIEL D. CHU, ESQ.
CHAIR

TRACY CATAPANO-FOX, ESQ.
EXECUTIVE DIRECTOR

September 12, 2013

Re: CCRB case number 201307993

To Whom it May Concern:

This is to confirm that Mr. Grant was present today as a witness in the office of the Civilian Complaint Review Board, a city agency that investigates complaints of misconduct made against New York City police officers. Mr. Grant's presence was needed in connection with the investigation of the above-referenced case. Mr. Grant's continued cooperation in this matter is greatly appreciated.

If you have any questions, please feel free to call me at (212) 912-2075.

Sincerely,

Adrian Legaspi
Investigator

ADRIAN LEGASPI
Commissioner of Deeds
City of New York No. 2-13383
Certificate Filed in New York County
Commission Expires August 1, 2014



POLICE DEPARTMENT OF THE CITY OF NEW YORK
Desk Appearance Ticket

Precinct of Arrest : 032

DAT Serial No. : 032-00694

OLBS Arrest-ID : M13675983

The People of the State of New York VS

Defendant Name : GRANT, BRANDON,
Defendant Address: 159 HALSEY STREET, 3C,
BROOKLYN, NY

Age: 55 yrs

Date of Birth: 02/04/1958

You are hereby summoned to appear in the Criminal Court of the City of New York, to answer a criminal charge made against you.

Top Offense Charged : PL 265.01 01

County: New York

Arraign/Part: DAT

Time: 09:30 AM

Date: 10/08/2013

At LOC: 100 Centre Street, New York, NY 10003

Room: _____

Instructions for Defendant

You must appear at the time and date indicated above, and present this form to the court clerk.

Should you fail to appear for the offense charged above, in addition to a warrant being issued for your arrest, you may be charged with additional violations of the penal law which upon conviction may subject you to a fine, imprisonment or both. Additionally, if you fail to comply with the directions of this Desk Appearance Ticket, any bail paid will be subject to forfeiture.

Additional Instructions : _____

Acknowledgement of Defendant:

I, the undersigned, do hereby acknowledge receipt of the above Desk Appearance Ticket, personally served upon me, and do agree to appear as indicated.

Defendant Signature:

Time: 15:35

Date: 08/28/2013

Photographed by:

Time: 15:35

Date: 08/28/2013

FingerPrinted?: 1

Arresting Officer: GREEN, JOE

Shield: --

Rank: POM

Tax Reg.: _____

Squad: 32ND PRECINCT

Command: 032

Agency: NYPD

Address of Agency if not NYPD: _____

Was cash bail accepted?: N

Amount: 0

Signature Issuing Officer

8/28/13
Date

Signature Desk Officer

VERIFICATION

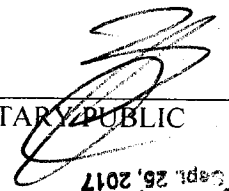
STATE OF NEW YORK)
) ss.:
COUNTY OF KINGS)

BRANDON GRANT, being duly sworn, deposes and says that the deponent is the Plaintiff in this action and has read this NOTICE OF CLAIM and knows its contents to be true to the best of deponent's knowledge, except as to those matters stated to be alleged upon information and belief and as to those matters, deponent believes them to be true.

Dated: OCTOBER 24, 2013
Brooklyn, New York


BRANDON GRANT

Sworn to before me on this
24 day of OCTOBER, 2013


NOTARY PUBLIC
BRIAN FIGEROUX
Notary Public, State of New York
No. 02F15049819
Qualified in Kings County
Commission Expires Sept. 26, 2017

BRIAN FIGEROUX
Notary Public, State of New York
No. 02F15049819
Qualified in Kings County
Commission Expires Sept. 26, 2017

BRIAN FIGEROUX
Notary Public, State of New York
No. 02F15049819
Qualified in Kings County
Commission Expires Sept. 26, 2017

VERIFICATION

State of New York)
) ss.:
County of Kings)

Brian Figeroux, Esq., the attorney for the Plaintiff, **BRANDON GRANT**, in the within action states:

That I have read the foregoing Notice of Claim and know the contents thereof and the same is true to my knowledge, except as to the matters stated therein to be alleged on information and belief, and as to those matters your affirmant believes it to be true.

The grounds of my belief as to all matters not states upon my knowledge are as follows:

 All material relevant to the occurrence as contained in the file maintained in deponent's office.

I affirm that the foregoing statement is true, under penalties of perjury.

Dated: October 24, 2013
Brooklyn, NY

Yours etc.



Brian Figeroux, Esq.

OFFICE OF THE COMPTROLLER CITY OF NEW YORK
CITY OF NEW YORK

-----X
BRANDON GRANT,

Plaintiff(s),
-against-

The City of New York and The New York City
Police Department,

Defendant(s).
-----X

NOTICE OF CLAIM

Figeroux & Associates
Attorneys for Plaintiff – **BRANDON GRANT**
26 Court Street, Suite 701
Brooklyn, New York 11242
Tel.: (718) 834-0190
Fax: (718) 222-3153

TO:
Office of the Comptroller
Division of Law – RM 1225 South
1 Centre Street
New York, NY 10007

New York City Police Department
1 Police Plaza
New York, New York 10007

VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF KINGS)

BRANDON GRANT, being duly sworn, deposes and says that the deponent is the Plaintiff in this action and has read this Summons & Verified Complaint and knows its contents to be true to the best of deponent's knowledge, except as to those matters stated to be alleged upon information and belief and as to those matters, deponent believes them to be true.

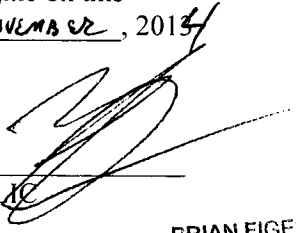
Dated: November 11, 2014
Brooklyn, New York



BRANDON GRANT

Sworn to before me on this
14th day of November, 2014

NOTARY PUBLIC


BRIAN FIGEROUX
Notary Public, State of New York
No. 0612000815
Queens and Kings County
Commission Expires Sept. 25, 2017

VERIFICATION

STATE OF NEW YORK }
COUNTY OF KINGS } ss.:

Brian Figeroux Esq., the attorney for the plaintiff, BRANDON GRANT, in the within action;
states:

That I have read the foregoing Summons and Verified Complaint, and know the contents thereof and the same is true to my knowledge, except as to the matters stated therein to be alleged on information and belief, and as to those matters your affirmant believes it to be true.

The grounds of my belief as to all matters not states upon my knowledge are as follows:

All material relevant to the occurrence as contained in the file maintained in deponent's office.

I affirm that the foregoing statement is true, under penalties of perjury.

Dated: November 11, 2014
Brooklyn, NY

Yours etc.



Brian Figeroux, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.:

BRANDON GRANT,

Plaintiff(s),

-Against-

**SUMMONS AND
VERIFIED COMPLAINT**

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT AND POLICE OFFICER
JOHN GUERRA an employee of THE NEW YORK
CITY POLICE DEPARTMEN

Defendant(s).

-----X

SUMMONS AND VERIFIED COMPLAINT

Figeroux & Associates
Attorneys for Plaintiff
BRANDON GRANT
26 Court Street, Suite 701
Brooklyn, New York 11242
Tel: 718-834-0190

TO:

The City of New York
Law Department
100 Church Street
New York, NY 10007